



Mineral Development Act (Northern Ireland) 1969 ^{F1}

CHAPTER 35

MINERAL DEVELOPMENT ACT (NORTHERN IRELAND) 1969

VESTING OF MINES AND MINERALS IN THE MINISTRY OF COMMERCE,...

VESTING OF MINES AND MINERALS IN THE MINISTRY OF COMMERCE, WITH CERTAIN EXCEPTIONS

- 1 Vesting of mines and minerals in the Ministry.
- 2 Exception of scheduled substances and mines thereof.
- 3 Exception of mines and minerals already vested in the Ministry.
- 4 Exception of certain other Crown mines and minerals.
- 5 Exception of mines and minerals the property of religious denominations and educational institutions.
- 6 Exception of merged mines and minerals.
- 7 Exception of minerals held in connection with mines in work or being developed, and of mines of such minerals.

PROVISIONS FOR SECURING THE DISCLOSURE OF INTERESTS IN CERTAIN EXCEPTED MINES AND MINERALS

- 8 Registration of mineral rights where mines are in work or being developed.
- 9 Consequences of non-registration under section 8.
- 10 Safeguards for persons working or developing mines.

PROSPECTING

- 11 Power of Ministry to prospect or grant prospecting licences.
- 12 Provisions with respect to prospecting licences.
- 13 Working of mines and minerals by licensees and duty to give information respecting minerals.
- 14 Undertaking by the Ministry to grant mining leases, etc.

WORKING OR DISPOSAL OF MINES AND MINERALS VESTED IN THE MINISTRY

- 15 Power of Ministry to work mines and minerals.
- 16 Power to sell estate in mines and minerals.
- 17 Mining leases.
- 18 Mining licences.
- 19 Mining permissions.
- 20 Conditions of disposal.
- 21 Disposal for nominal or no consideration in certain cases.
- 22 Rights of entry and user of land containing mines and minerals vested in the Ministry.

ANCILLARY MINING FACILITIES

- 23 Acquisition of land and ancillary rights.
- 24 Provisions supplemental to section 23.
- 25 Exercise by Ministry of acquired mining facilities.
- 26 Mining facilities permits.
- 27 Conditions of mining facilities permits.
- 28 Surrender of acquired mining facilities.

COMPENSATION FOR MINES AND MINERALS

- 29 Compensation for mines and minerals vested in the Ministry under section 1.
- 30 Persons entitled to compensation under section 29.
- 31 Claims for compensation under section 29.
- 32 Determination of attribution of net profit
- 33 Determination of title to compensation under section 29.
- 34 Determination of certain other questions in relation to compensation under section 29.

COMPENSATION FOR LOSS OF DEAD RENT

- 35 Compensation for loss of dead rent.
- 36 Claims for compensation under section 35 and determination of disputes.

RIGHTS OF FORMER VENDORS

- 37 Share of persons entitled under s.13(3) of Irish Land Act 1903, where minerals disposed of by Ministry.

DAMAGE CAUSED BY MINING OPERATIONS

- 38 Compensation for damage caused in working minerals, etc.
- 39 Power of Lands Tribunal to prohibit, restrict or terminate certain operations.
- 40 Restrictions on working minerals required for support.

GENERAL PROVISIONS AS TO COMPENSATION, ETC.

- 41 Making of claims to the Ministry.
- 42 Satisfaction of claims.
- 43 Disposal of certain dormant or unclaimed moneys.
- 44 Provisions with respect to land subject to Land Purchase Annuity.

GENERAL PROVISIONS AS TO LANDS TRIBUNAL

- 45 Power of Lands Tribunal to state consultative case for Court of Appeal.
- 46 Enforcement of awards of the Lands Tribunal.

MISCELLANEOUS

- 47 Entry on land.
- 48 Offences.
- 49 Regulations.
- 50 Annual statement and register of notices.
- 51 Account of receipts and expenditure under Act.
- 52 Financial provisions.
- 53 Power of educational institutions to facilitate the working of mines and minerals.
- 54 Repayment of grants, etc., in certain cases.
- 55 Meaning of “stone, gravel, sand or clay” in s.13(3) of the Irish Land Act 1903.
- 56 Definitions of “minerals”, “mine” and “ancillary rights” .
- 57 General interpretation provisions.
- 58 Savings.
S.59 rep. by 1970 c.18 (NI)
- 60 Application of Planning Orders to certain mining development on Crown property.
- 61 Act to bind Crown.
S.62(1), with Schedule 3, effects amendments; subs.(2), with Schedule 4,...
- 63 Short title and commencement.

SCHEDULES

SCHEDULE 1 — SUBSTANCES EXCEPTED BY SECTION 2

- 1 Conglomerate; grit (or gritstone), sandstone, greywacke, siltstone, mudstone, shale (excluding alum shale and oil shale),...
- 2 Any superficial deposit of gravel or sand, whether of fluvioglacial, river or marine origin.
- 3 All of the following of Quaternary Age, namely, boulder clay, laminated clay, alluvial clay and...
- 4 All agricultural soil.

SCHEDULE 2 — MINING FACILITIES ORDERS

- MAKING OF ORDERS (1) (1) THE MINISTRY, WHERE IT PROPOSES TO ACQUIRE ANY LAND OR...

MAKING OF ORDERS

- 1 (1) The Ministry, where it proposes to acquire any land or any ancillary rights by...
- 2 (1) On the expiration of one month after the last publication of the notice mentioned...

VALIDITY AND OPERATION OF ORDERS

- 3 (1) The following provisions of this paragraph shall have effect with respect to the validity...
- 4 (1) Subject to sub-paragraph (3), a mining facilities order shall operate, without further assurance “to...
- 5 A mining facilities order, or the title created by such an order (if it relates...
- 6 Where a mining facilities order relates to any land forming part of a holding which...
- 7 Subject to the provisions of section 47, on and after the date of vesting the...
- 8 (1) Section 92 of the Lands Clauses Consolidation Act 1845 shall not have effect in...

REFERENCE OF DISPUTED CASES TO THE LANDS TRIBUNAL

- 9 (1) As soon as a mining facilities order has become operative, any question of disputed...
- 10 When any question of disputed compensation arises, the Ministry shall as soon as practicable thereafter...

SPECIAL POWERS OF THE LANDS TRIBUNAL

- 11 (1) The Lands Tribunal shall have the same power of apportioning any rent-service, rent-charge, chief...

SATISFACTION OF CLAIMS

- 12 (1) The Ministry, on paying to any person any compensation (whether the amount thereof has...
- 13 (1) Where the compensation payable (whether the amount thereof has been settled by agreement or...
- 14 Any person claiming to be entitled to any money paid to another person pursuant to...
- 15 (1) Where the amount of compensation which is payable in respect of any land to...
- 16 (1) The Ministry shall pay interest upon the compensation money from the date of the...
- 17 In this Schedule “instalment” includes any rent or other periodical payment.

— Schedule 3—Amendments

— Schedule 4—Repeals

Changes to legislation:

There are currently no known outstanding effects for the Mineral Development Act (Northern Ireland) 1969.